

ORIGINAL

FILED

JUN 25 2018

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BEFORE THE
FEDERAL MARITIME COMMISSION **Federal Maritime Commission**
Office of the Secretary

Docket No. 18-03

JC HORIZON LTD.

COMPLAINANT

v.

CHINA SHIPPING CONTAINER LINES CO., LTD.

RESPONDENT

**ANSWER OF RESPONDENT CHINA SHIPPING CONTAINER
LINES CO., LTD. TO VERIFIED COMPLAINT**

Respondent China Shipping Container Lines Co., Ltd. ("CSCL") (hereinafter sometimes referred to as "Respondent") hereby answers the Verified Complaint as follows.

PARTIES AND JURISDICTION

- A. Respondent lacks sufficient information or knowledge to admit or deny.
- B. Admits the first sentence but is unable to admit or deny the remaining sentences as Respondent lacks sufficient information or knowledge to admit or deny the restructuring process undergone by Respondent and China Ocean Shipping Company at this time.
- C. Admits.
- D. Admits the first sentence and denies the second sentence as any charges imposed by Respondent would have been based on the Service Contract, Respondent's Terms and Conditions of its bill of lading, and Respondent's filed Tariff.

E. Denies.

F. Admits.

STATEMENTS OF FACTS COMMON TO ALL ACCOUNTS

G. Admits the second sentence and the majority of the first sentence except for JC Horizon's description of the DDGS which Respondent lacks sufficient information or knowledge to admit or deny.

H. Admits.

I. Admits and Respondent clarifies that the natural long term schedule connecting port for Huangpu, China is Nansha, China for Respondents services.

J. Denies the first sentence as operational scheduling decisions were made with vessel Alliance members. Admits the second sentence and Respondent clarifies that the natural long term schedule connection port for Huangpu, China is Nansha, China for Respondents services.

K. Respondent lacks sufficient information or knowledge to admit or deny.

L. Respondent lacks sufficient information or knowledge to admit or deny.

M. Respondent lacks sufficient information or knowledge to admit or deny.

N. Respondent lacks sufficient information or knowledge to admit or deny.

O. Respondent lacks sufficient information or knowledge to admit or deny.

P. Denies.

Q. Respondent lacks sufficient information or knowledge to admit or deny.

R. Denies, except for the reference that demurrage and detention charges were incurred during the time the containers were at Nansha.

S. Denies.

T. Denies, except for the reference in the first sentence that detention and demurrage under CSCL's Tariff was more than \$600,000 for the cargo.

U. Admits the first sentence and denies the second sentence except for the reference that detention and demurrage under CSCL's Tariff was more than \$600,000 for the cargo.

V. Admits.

W. Admits.

X. Admits.

Y. Denies.

Z. Denies.

AA. Admits, except for the last portion of the third sentence which states "indicating that no demurrage would be assessed" which Respondent denies.

BB. Denies.

CC. Denies.

DD. Denies.

VIOLATIONS OF THE SHIPPING ACT

1. Denies.

2. Denies.

3. Denies.

4. Denies.

5. Denies.

INJURY TO JC HORIZON

Denies.

AFFIRMATIVE DEFENSES

First - The Complainant has failed to state a claim upon which relief can be granted.

Second - Respondents actions were justified since they were in accordance with the Shipping Act.

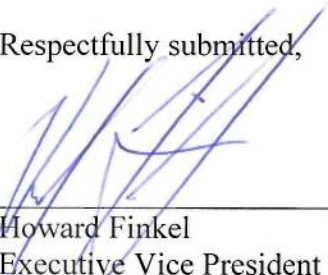
Third - The Complaint appears to have been filed in response to the breach of contract action conducted by the Society of Maritime Arbitrators which found in favor of Respondent and raises contract law defenses, but not Shipping Act claims.

PRAYER FOR RELIEF

First - Respondent respectfully requests that the Federal Maritime Commission deny the relief fought by Complainant.

Second - Respondent requests that a hearing on this matter be held in the New York, New York area, or alternatively, in Washington, D.C.

Respectfully submitted,



Howard Finkel
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for an on behalf of
China Shipping Container Lines Co., Ltd.

CERTIFICATE OF SERVICE

I hereby certify that I have this 22nd day of June, 2018, served a copy of the foregoing Answer of Respondent China Shipping Container Lines Co., Ltd., on the Complainant by sending a copy via United Parcel Services to Complainant's attorneys as follows:

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